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Case Number: 25STCV13000 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF
CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE
RULING

JOHN DOE 1, et al.,

Plaintiffs,

v.

GMRI, INC, et al.,

Defendants.

Case No: 25STCV13000

Hearing Date: June
30, 2026

Calendar Number: 9

Defendant GMRI, Inc.

moves for an order removing Plaintiffs John Doe 1 and John Doe 2's pseudonyms.

Defendant's motion to remove Plaintiffs'

pseudonyms is DENIED. Plaintiffs may proceed under the pseudonyms.

Background

This is an employment action. On May 5, 2025, Plaintiffs

John Doe 1 and John Doe 2 ("Plaintiffs") filed a complaint against Defendants GMRI, Inc.

("Defendant") and Dajuan Jones, alleging causes of action for: (1) quid pro quo sexual harassment; (2) work environment harassment; (3) failure to prevent harassment, discrimination, or retaliation; (4) sexual battery; (5) intentional infliction of emotional distress; (6) negligent hiring, supervision, or retention; (7) false imprisonment; (8) retaliation; and (9) whistle blower protection.

The complaint alleges

that Plaintiffs were employees of Defendant dba Olive Garden Restaurant.

Defendant Jones was a General Manager at the Olive Garden restaurant where Plaintiffs worked.

Plaintiffs allege

that around April 2023, Defendant Jones began making inappropriate sexual advances towards Plaintiff Doe 1 at work. Plaintiffs allege that Defendant Jones threatened to reduce/cut Plaintiff Doe 1's days/hours from his schedule if he continued to refuse, which he did.

Plaintiffs allege

that in May 2023, Jones told Plaintiff Doe 1 (via translation on his phone) to get in his car or he would be fired. After Plaintiff Doe 1 got in Defendant's Jones' car, Jones drove to Griffith Park Ferraro Athletic Fields. Plaintiffs allege that Defendant Jones forced Plaintiff Doe 1 to have sex with him in the public restroom. Plaintiff Doe 1 felt he had no choice, or he would be fired, especially since Defendant Jones had already been reducing/cutting his days/hours from his schedule by this time.

Plaintiffs allege

numerous other instances of Jones' sexual battery on Doe 1.

Plaintiffs allege

that in addition to threats about firing and/or reducing/cutting hours/days from his schedule, Defendant Jones threatened to report Plaintiff Doe 1 to immigration if he refused.

Plaintiffs allege

that in February 2025, Doe 1 reported the abuse and misconduct to management, but during a meeting two weeks later, management said nothing can be done because Jones no longer worked for Defendant by that time.

Plaintiffs similarly

allege that in late 2023/early 2024, Defendant Jones began making inappropriate and flirtatious advances towards Plaintiff Doe 2 at work, and Doe 2 expressed disinterest or ignored such advances.

Plaintiffs also allege instances of sexual battery on Doe 2 by Jones.

Plaintiffs allege

that on February 8, 2025, Plaintiff Doe 2 submitted an incident report to management for Defendant regarding Defendant Jones' sexual harassment and battery. Plaintiffs allege that management said the investigation was done and nothing else.

Plaintiffs allege

since reporting Jones' misconduct their hours/days have been reduced.

On April 30, 2026, Defendant filed this motion to remove Plaintiffs' pseudonyms. On June 16, 2026, Plaintiffs filed an Opposition. On June 23, 2026, Defendant filed a Reply.

Legal Standard

A

request to proceed under a pseudonym is subject to the same analysis as a motion to seal court records. (Roe v. Smith (2025) 116 Cal.App.5th 227, 247-248 (Smith); Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 111.)

"Much like

closing the courtroom or sealing a court record, allowing a party to litigate anonymously impacts the First Amendment public access right. Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur 'only in the rarest of circumstances.'" (Department of Fair Employment and Housing, *supra*, 82 Cal.App.5th at p. 111.)

"Before allowing a party to litigate under a pseudonym, the trial court must expressly find facts establishing an overriding interest that overcomes the right of public access to court records, and find a substantial probability that interest will be prejudiced if a pseudonym is not used." (Roe, *supra*, 116 Cal.App.5th at p. 247 [citing Cal. Rules of Court, rule 2.550(d)(1)–(3)].) "The trial court must also find use of the pseudonym is narrowly tailored to serve the overriding interest, and there is no less restrictive means of achieving the overriding interest." (Ibid. [citing Cal. Rules of Court, rule 2.550(d)(4)–(5)].) "In performing the analysis under California Rules of Court, rule 2.550(d), courts may rely upon factors set forth in relevant federal cases for their persuasive value. What factors are relevant, the weight to which they are entitled, and even which way they cut, may depend on the precise interest and circumstances identified in each case." (Id., at p. 248.)

Discussion

Defendant moves for an order removing Plaintiffs' pseudonyms.

The Ninth Circuit Court of Appeals noted that federal courts have permitted plaintiffs to use pseudonyms in three situations: "(1) when identification creates a risk of retaliatory physical or mental harm; (2) when anonymity is necessary to preserve privacy in a matter of sensitive and highly personal nature; and (3) when the anonymous party is compelled to admit his or her intention to engage in illegal conduct,

thereby risking criminal prosecution.” (Does I thru XXIII v. Advanced Textile Corp. (9th Cir. 2000) 214 F.3d 1058, 1068.)

Defendant argues

that Plaintiffs have refused to provide Defendant—let alone this Court, as procedurally required—with any legal support or admissible evidence to substantiate any of these possible circumstances.

Plaintiffs argue

that they initiated this action using pseudonyms due to the serious and sensitive nature of the allegations of repeated same-sex, harassment, sexual assault and rape to which the plaintiffs were subjected, and the graphic nature of the sexual conduct in which they were forced to engage, the social stigma attached to the homosexual nature of the conduct at issue, and the high likelihood they will suffer severe personal embarrassment and further emotional injury if forced to proceed in this litigation under their real names.

Additionally, they argue, John Doe 1, faces the risk of arrest and deportation as an undocumented immigrant, should his true name become public. The public interest in preventing others from being discouraged to come forward also favors permitting plaintiffs to proceed anonymously.

Plaintiffs claim

they were sexually harassed and assaulted by a supervisor and general manager employed by Defendant. (Doe 1 Decl., ¶ 3; Doe 2 Decl., ¶ 3.)

Plaintiffs argue that “With regard to allegations of sexual assault, several courts have concluded that any prejudice the defendant may face does not favor requiring the plaintiff to disclose her [or his] identity, and that the public’s interest in allowing alleged victims of sexual assault to proceed anonymously outweighs any public interest in the plaintiffs’ identity.” (See Jane Doe K.G. v. Pasadena Hosp. Ass’n (C.D.Cal. 2019) 2019 U.S. Dist. LEXIS 64284; 2019 WL 1612828, at *2-3; see also Al Otro Lado, Inc. v. Nielsen (S.D.Cal. 2017) 2017 U.S. Dist. LEXIS 210401, 2017 WL 6541446, at *4 [concluding the plaintiffs “warrant anonymity on the ground their allegations of harm ... concern sexual assault” as well as fear of retaliation and physical harm in home countries].)

The Court finds that that

this case involves a matter of sensitive and highly personal nature.

John Doe 1 avers

that given the serious and sensitive nature of the allegations of repeated same-sex, sexual assault and harassment to which he was subjected, and the graphic nature of the sexual conduct in which he was forced to engage, there is a high likelihood John Doe 1 will suffer severe personal embarrassment and further emotional injury if forced to proceed in this litigation under his real name. The sensitivity of the allegations also has the potential for severe embarrassment by his family should his identity and the conduct to which he was subjected be made public, as he is an immigrant from Bolivia, where homosexual conduct is not as accepted as it is in the United States. Also, as he is an undocumented immigrant, creating a risk and fear of deportation, should his name become publicly available. (John Doe Decl., ¶ 5.)

John Doe 2 avers

that given the serious and sensitive nature of the allegations of repeated same-sex, sexual assault and harassment to which he was subjected, and the graphic nature of the sexual conduct in which he was forced to engage, there is a high likelihood John Doe 2 will continue to suffer severe personal embarrassment and further emotional injury if forced to proceed in this litigation under his real name. Doe 2 is also married. Due to the sensitivity of the allegations, there exists a potential for severe embarrassment to his family, his spouse's family, and their friends, should the conduct to which Doe 2 was subjected by the manager become widespread public knowledge. (John Doe 2, Decl., ¶ 4.)

Plaintiffs argue

that recognizing the First Amendment's right of public access to court proceedings, federal courts have also allowed plaintiffs to proceed anonymously in cases involving mental illness, homosexuality, and transgender status due to the social stigma associated with those disclosures (See *Doe v. Frank* (11th Cir. 1992) 951 F.2d 320, 324; *Doe v. Megless* (3rd Cir. 2011) 654 F.3d 404, 408), when necessary "to protect a person from harassment, injury, ridicule or personal embarrassment" (*Does I thru XXIII v. Advanced Textile Corp.*, *supra*, 214 F.3d at 1067-1068.)

The Court finds that

Plaintiffs have shown they may use pseudonyms in this situation due to the serious and sensitive nature of the allegations of same-sex sexual assault, and due to the risk of mental harm and Doe 1's risk of deportation.

Analysis of Factors to Determine the Need for Anonymity

The Advanced Textile Corp court held that the “court should determine the need for anonymity by evaluating the following factors:: (1) the severity of the threatened harm, see Southern Methodist Univ., 599 F.2d at 713; (2) the reasonableness of the anonymous party's fears, see Stegall, 653 F.2d at 186; and (3) the anonymous party's vulnerability to such retaliation”; (4) the prejudice at each stage of the proceedings to the opposing party; and (5) whether the public's interest in the case would be best served by requiring that litigants reveal their identities. (Does I thru XXIII v. Advanced Textile Corp., supra, 214 F.3d at p. 1068.)

1. Severity of the Threatened Harm

Both plaintiffs were subject to abusive conduct of an extremely sensitive sexual and highly personal nature; both plaintiffs face a social stigma associated with the disclosure of being subjected to same-sex sexual abuse; both plaintiffs have a reasonable fear of further injury should their names be disclosed in relation to the claims of misconduct being made by them; both plaintiffs have a reasonable fear of that they and their family will be subject to harassment, embarrassment and injury and danger to their mental well-being should their identities be made public. (John Doe 1 Decl., ¶ 4; John Doe 2 Decl., ¶ 5.)

John Doe 1 also faces the threat of arrest and deportation, should his name become public. (John Doe 1 Decl., ¶ 4.)

The Court finds that Plaintiffs have sufficiently stated that they face social stigma, and further injury such as embarrassment and danger to their mental well-being should their identities be public. Further, Doe 1 faces the threat of deportation.

2. Reasonableness of Plaintiffs' Fears

Due to the serious and sensitive nature of the allegations of repeated same-sex, sexual battery

and harassment, Plaintiffs argue their fears of further harm arising from embarrassment and stigmatization are reasonable and legitimate. (See *Advanced Textile Corp.*, 214 F.3d at 1068; (DFEH, 82 Cal.App.5th at 112; *Jane Doe K.G.*, 2019 U.S. Dist. LEXIS 64284, at *2-3.)

They argue that Doe 1's fear of arrest and deportation is also reasonable should his name be made public (see *Advanced Textile Corp.*, supra, 214 F.3d 1058, 1069), given (a) the fact that he had been threatened by Defendant's manager with being reported to immigration (John Doe 1 Decl., ¶ 4), and (b) the recent, publicly well known, increased efforts on the part of Immigration and Custom Enforcement (ICE) in arresting and deporting undocumented immigrants, depicted in the media. John Doe 1 was, in fact threatened with being reported to immigration by the manager that sexually abused him. (Id.).

Defendant argues that the record is devoid of evidence showing any concrete, present risk of arrest, deportation, or adverse action tied to this litigation. Instead, Plaintiffs ask the Court to accept conjecture in place of proof, an approach that is incompatible with the exacting evidentiary burden required to curtail public access. "What is relevant is that plaintiffs were threatened, and that a reasonable person would believe that the threat might actually be carried out." (Does I thru XXIII v. *Advanced Textile Corp.*, supra, 214 F.3d at p. 1071.) Just as in *Advanced Textile Corp.*, Plaintiff Doe 1 was threatened. Doe 1 was specifically threatened by Jones that he would be reported to immigration and with adverse employment action. As to Doe 2, the Court also finds his fears are reasonable because he is married due to the nature of the same-sex sexual battery allegations. The Court finds that Plaintiffs satisfied their burden.

3. Plaintiffs' Vulnerability to Retaliation

The Court notes that Doe 1 is particularly vulnerable due to his immigration status.

4. Prejudice at Each Stage of the Proceedings to the Opposing Party

“Since the employee’s identity is known to the defendant, proceeding anonymously would not . . . intrude on the defendant’s rights.” (Department of Fair Employment and Housing v. Superior Court of Santa Clara County, *supra*, 82 Cal.App.5th at 110.)

Plaintiffs’ identities have been previously made known to Defendant and are, additionally being disclosed to Defendant by their declarations submitted herewith, under conditional seal. (See John Doe 1 Decl. and John Doe 2 Decl.) Plaintiffs have already served discovery responses on defendants, with true-name verifications. (Miller Decl., ¶ 2.)

Defendant argues it will be prejudiced because Defendant swapped the Plaintiffs’ names and Plaintiffs failed to provide clarity in their discovery responses. However, this is not the kind of prejudice the Court will consider. Defendant may file a motion if Plaintiff has provided deficient responses.

Defendant also argues that it was prejudiced by Plaintiffs filing the complaint under the pseudonyms because they delayed in seeking leave of court to prosecute this case anonymously. However, again, Defendant could have resorted to motion practice earlier.

The Court finds that because Defendant is aware of Plaintiffs’ identity, proceeding anonymously would not intrude on its rights.

5. Whether the Public’s Interest in the Case Would be Best Served through Disclosure

“Much like closing the courtroom or sealing a court record, allowing a party to litigate anonymously impacts the First Amendment public access right. Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that

it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings.”(Department of Fair Employment and Housing v. Superior Court of Santa Clara County, supra, 82 Cal.App.5th at 111–112.)

The Court finds that in this case, which includes allegations of same-sex sexual battery against a manager, the public's interest in open proceedings do not outweigh the Plaintiffs' interest in shielding their identity. Plaintiffs' allegations of sexual assault are inherently personal and provocative to merit shielding their identities through use of pseudonyms. Further, the public interest in preventing others from being discouraged to come forward also favors permitting plaintiffs to proceed anonymously. The Court finds that Plaintiffs' need for anonymity outweighs any prejudice and the public's interest in knowing their identities.

Least Restrictive Means

Defendant argues that Plaintiffs' privacy can be protected by sealing particular filings, redacting intimate details, or controlling discovery—any of which would be more restrictive than the extraordinary relief Plaintiffs seek of blanket pseudonymity.

The Court disagrees. In light of the constitutional considerations supporting open court proceedings, sealing the record or any portions of the case would constrain the public's right of access to a greater extent than permitting plaintiff to use a pseudonym. Further, under California Rules of Court Rule 2.551, sealing the record requires a noticed motion, which would unnecessarily require constant Court resources.

The Court finds that using pseudonyms is the least restrictive means and is narrowly tailored.

As a result, Defendant's motion to remove Plaintiffs' pseudonyms is DENIED. Plaintiffs may proceed under the pseudonyms.